



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 30TH DAY OF JUNE, 2023

BEFORE

THE HON'BLE MR JUSTICE KRISHNA S DIXIT

WRIT PETITION NO. 13710 OF 2022 (GM-RES)

BETWEEN:

X CORP.

A COMPANY INCORPORATED UNDER THE LAWS
OF THE UNITED STATES OF AMERICA,
HAVING ITS REGISTERED OFFICE AT:
1355, MARKET STREET, SUITE 900,
CALIFORNIA 94103.

UNITED STATES OF AMERICA
AND HAVING ITS PHYSICAL
CONTACT ADDRESS IN INDIA AT:
121, 8TH FLOOR,
THE ESTATE, DICKENSON ROAD,
BENGALURU - 560 042.

REPRESENTED BY ITS AUTHORISED SIGNATORY.
(AMENDED AS PER ORDER DATED 19.04.2023)

...PETITIONER

(BY SRI.ARAVIND DATAR & SRI. ASHOK HARANAHALLI,
SR. COUNSELS A/W
SRI. MANU P. KULKARNI., SRI. ANKIT AGARWAL,
SRI. SHARAN BALAKRISHNA, MS. SHLOKA NARAYANAN,
MS. SHRISTI WIDGE, SRI. MANOJ RAIKAR AND
SRI. ABHISHEK KUMAR, ADVOCATES)

AND:

1. UNION OF INDIA
REPRESENTED BY THE
MINISTRY OF ELECTRONICS AND
INFORMATION TECHNOLOGY,
ELECTRONICS NIKETAN, 6,
CGO COMPLEX, LODHI ROAD,
NEW DELHI-110 003.



2. THE DESIGNATED OFFICER,
MINISTRY OF ELECTRONICS AND
INFORMATION TECHNOLOGY,
GOVERNMENT OF INDIA, ELECTRONICS, NIKETAN,
6, CENTRAL GOVERNMENT OFFICES COMPLEX,
NEW DELHI-110 003.

...RESPONDENTS

(BY SRI. SHANKARANARAYANAN, ASGI, SOUTHERN ZONE A/W
SRI. KUMAR M.N., CGSPC)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA, PRAYING TO QUASH THE BLOCKING ORDER DATED 02.02.2021 ISSUED BY RESPONDENTS VIDE ANNEXURE-A, BLOCKING ORDER DATED 04.02.2021 ISSUED BY RESPONDENTS VIDE ANNEXURE-B, BLOCKING ORDER DATED 16.02.2021 ISSUED BY RESPONDENTS VIDE ANNEXURE-C, BLOCKING ORDER DATED 05.06.2021 ISSUED BY RESPONDENTS, VIDE ANNEXURE-D, BLOCKING ORDER DATED 24.06.2021 ISSUED BY RESPONDENTS VIDE ANNEXURE-E, BLOCKING ORDER DATED 19.07.2021 ISSUED BY RESPONDENTS VIDE ANNEXURE-F, BLOCKING ORDER DATED 12.08.2021 ISSUED BY RESPONDENTS VIDE ANNEXURE-G, BLOCKING ORDER DATED 27.09.2021 ISSUED BY RESPONDENTS VIDE ANNEXURE-H, BLOCKING ORDER DATED 09.12.2021 ISSUED BY RESPONDENTS VIDE ANNEXURE-J, AND BLOCKING ORDER DATED 28.02.2021 ISSUED BY RESPONDENTS, VIDE ANNEXURE-K ALL MOREFULLY DESCRIBED IN THE SCHEDULE AND PRODUCED IN A SEALED COVER.

THIS PETITION HAVING BEEN HEARD AND RESERVED FOR ORDER, THIS DAY, THE COURT PRONOUNCED THE FOLLOWING:

ORDER

Petitioner, claiming to be an Intermediary under the Information Technology Act, 2000 (hereafter 'Act'), is knocking at the doors of Writ Court complaining against



certain Blocking Orders issued by the respondents, whereby it is directed to bar access of certain information to the public, by effecting suspension of some accounts on Twitter i.e., www.twitter.com. In the alternative, petitioner seeks a direction at the hands of this court '*to modify the Blocking Orders to the extent of Table A of Annexure S to revoke the account level directions and instead identify specific tweets which are violative of Section 69A of the IT Act with reasons.*' The respondents vide letter dated 27 June 2022 have warned the petitioner of serious consequences such as withdrawal of protection availing under section 79(1) of the Act and initiation of criminal proceedings as well if these orders are not complied with.

Particulars of the said orders are furnished by the petitioner in a tabular form as under:

Blocking Order date	Accounts to be blocked	Tweets to be blocked
02.02.2021	256 URLs and 1 hashtag	
04.02.2021	1178	0
16.02.2021	6	0



05.06.2021	50	27
24.06.2021	39	88
19.07.2021	20	8
12.08.2021	61	5
27.09.2021	55	3
09.12.2021	19	16
28.02.2022	46	28
Total	1474	175

"Of the above, only a total 39 URLs are being challenged by the petitioner in the present petition" avers the petitioner at the bottom of paragraph 4 of the petition.

II. After service of notice, the respondent-Union of India and its designated officer from the Ministry of Electronics & Information Technology, have entered appearance through their learned Sr. Standing Counsel and resist the Petition, making submission in justification of the impugned orders and the reasons on which they have been constructed. The respondents have filed their Statement of Objections countering the petition averments. Both the parties have filed certain Write-Ups